

Judge Mosbarger – Law & Motion – Wednesday, July 22, 2026 @ 9:00 AM
TENTATIVE RULINGS

1. 23CV02211 HOWELL, GREG V. FORD MOTOR COMPANY ET AL

EVENT: Ford Motor Company's Motion for Summary Judgment

Defendants Ford Motor Company and Wittmeier Auto Center's (collectively "Defendants" herein) Request for Judicial Notice is granted. The Motion for Summary Judgment being unopposed, and Defendants having made a prima facie showing that there is no liability with respect to Defendants [See Undisputed Material Fact Nos. 6, 8, 9-43], the Motion for Summary Judgment is granted. The Court vacates the Mandatory Settlement Conference on January 20, 2027, the Trial Readiness Conference on February 18, 2027, and the Jury Trial on February 22, 2027. The matter is set for a Review Hearing on September 23, 2026 at 10:30 a.m. for status of dismissal. The Court will sign the form of order submitted by Defendants.

2. 24CV02590 GOODLIN, SCOTT ET AL V. WILLIAMS AG SERVICES, INC ET AL

EVENT: Plaintiff Scott Goodlin's Motion to Compel Defendant Williams Ag Services, Inc. to Respond to Scott Goodlin's Special Interrogatories, Set One (1), and for Sanctions

Plaintiff Scott Goodlin ("Plaintiff" herein) has failed to include a Separate Statement in compliance with California Rules of Court Rule 3.1345(a), and the Motion is denied on that basis. See, *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 [the Court concluded that because Plaintiffs did not comply with the requirements of a code compliant separate statement, the trial court was well within its discretion to deny the motion to compel discovery on that basis]; *St. Mary v. Superior Court* (2014) 223 Cal.App 4th 762, 778 [the Court confirmed that failure to include separate statement required by Cal. Rules of Court provided justification of court's denial of discovery motion].

In addition, the Court finds that Defendant Williams Ag Services, Inc. ("Defendant" herein) provided supplemental responses to the discovery at issue on May 5, 2026 with verifications thereafter served on May 11, 2026 [See Declaration of Amanda G. Hebesha at ¶10]. Consequently, the Court deems the Motion to Compel to be moot, and it is denied on that basis as well.

Finally, the Court also addresses Defendant's argument that Butte County Local Rule 2.14(C) requires Plaintiff to participate in the informal discovery process as mandated by the Court. However, the first sentence of the Rule states: "Should any party wish to voluntarily avail themselves of the procedure, or in the event that the Court orders the parties to comply with an informal Pretrial Discovery Conference then,..." Here, no such order has been made in this case and therefore Plaintiff was not required to make such a request prior to the filing of the instant Motion.

Plaintiff's request for sanctions is denied. Counsel for the Defendant shall prepare and submit a form of order within two weeks.

3. 26CV00572 QUIGLEY, GLEN ET AL V. ENDEAVOR HOMES INC ET AL

EVENT: Motion for Sanctions Against Plaintiffs, and Their Attorney of Record Pursuant to Code of Civil Procedure Section 128.7

The Court finds that the Complaint is not objectively frivolous and Defendants have failed to demonstrate a violation of *Code of Civil Procedure* §128.7 that would support an award of sanctions. The Motion for Sanctions Against Plaintiffs, and Their Attorney of Record Pursuant to *Code of Civil Procedure* Section 128.7, is denied.

4-5. 26CV00945 NATIONAL DEFAULT SERVICING CORPORATION V. ALL CLAIMANTS TO SURPLUS FUNDS AFTER TRUSTEE'S SALE OF REAL PROPERTY LOCATED AT 1741 TEHAMA AVENUE, OROVILLE, CA 95965

EVENTS: (1) Joint Motion for Disbursement of Surplus Funds

(2) Status Conference

The Court has considered all timely claims filed pursuant to *Civil Code* §2924j in relation to surplus funds deposited with the Court on April 27, 2026. The Court directs the Clerk to charge a reasonable fee for the performance of activities pursuant to this subdivision pursuant to *Civil Code* §2924j(c) in the amount of \$50.00. *Government Code* §70632. The remainder of the proceeds held by the Court are to be distributed as follows:

Lori Wood	\$11,147.93
Ron McGaffick	\$11,147.93
Tina Chadwell	\$11,147.93
Chantel Roberts	\$ 5,573.96
Skyler Ross	\$ 5,573.96

The Court has prepared and will sign the form of order.